

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                               |                           |                                                       |                                    |                                 |
|--------------------------------------------------|---------------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Sheila Donovan                  | Team:<br>Team # 7                                             | CCRB Case #:<br>200704844 | <input checked="" type="checkbox"/> Force             | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                               |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 02/27/2007 10:00 PM | Location of Incident:<br>Rosewood Avenue and White Plains Rd. | Precinct:<br>47           | 18 Mo. SOL<br>8/27/2008                               | EO SOL<br>8/27/2008                |                                 |
| Date/Time CV Reported<br>Mon, 04/09/2007 8:23 AM | CV Reported At:<br>CCRB                                       | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 04/09/2007 8:23 AM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)          | Shield | TaxID  | Command |
|-----------------------------|--------|--------|---------|
| 1. POM Michael Mchugh       | 92571  | 925715 | 047 PCT |
| 2. POM Richard Carrasquillo | 03671  | 928026 | 047 PCT |
| 3. Officers                 |        |        |         |

| Witness Officer(s)        | Shield No | Tax No | Cmd Name |
|---------------------------|-----------|--------|----------|
| 1. POF Alice Powell       | 27889     | 921686 | 047 PCT  |
| 2. POM James Rollins      | 24231     | 907185 | 047 PCT  |
| 3. POM Michael Kopf       | 28420     | 936883 | 047 PCT  |
| 4. POF Danil Acevedo      | 10798     | 934364 | 047 PCT  |
| 5. POM Joshua Rotenberg   | 04820     | 934138 | 047 PCT  |
| 6. POM Patrick Jean       | 24116     | 936810 | 047 PCT  |
| 7. POM Paulino Nunez      | 13681     | 925841 | 047 PCT  |
| 8. POF Laura Varisco      | 08985     | 920929 | 047 PCT  |
| 9. POM Timothy Merritt    | 30272     | 930729 | 047 PCT  |
| 10. LT Steven Ruffino     | 00000     | 883185 | 047 PCT  |
| 11. POM Terrence Smithson | 06106     | 927534 | PBBX TF  |
| 12. POM Robert Rodriguez  | 14441     | 926015 | PBBX TF  |

| Officer(s)                 | Allegation                                                            | Investigator Recommendation |
|----------------------------|-----------------------------------------------------------------------|-----------------------------|
| A.POM Richard Carrasquillo | Force: PO Richard Carrasquillo pointed his gun at § 87(2)(b)          |                             |
| B.POM Michael Mchugh       | Force: PO Michael McHugh pointed his gun at § 87(2)(b)                |                             |
| C.POM Michael Mchugh       | Force: PO Michael McHugh used physical force against § 87(2)(b)       |                             |
| D.POM Richard Carrasquillo | Force: PO Richard Carrasquillo used physical force against § 87(2)(b) |                             |
| E. Officers                | Force: Officers used physical force against § 87(2)(b)                |                             |
| F. Officers                | Abuse: An officer threatened to arrest an unknown individual.         |                             |

### Synopsis

§ 87(2)(b) filed his complaint with the CCRB on April 9, 2007 and with the IAB on April 10, 2007. § 87(2)(b) stated that on February 27, 2007, at approximately 10:00PM, he hit a post of an elevated train with his vehicle at Rosewood Avenue and White Plains Road in the Bronx after being chased by police officers in unmarked vehicles. § 87(2)(b) claimed that the officers, identified through the investigation as PO Michael McHugh and PO Richard Carrasquillo approached § 87(2)(b) with their guns pointed, took him out of his vehicle, handcuffed him and that unidentified officers kicked and punched him in the torso and the head (Allegations A, B, C, D and E). § 87(2)(b) heard an individual tell the officers to leave § 87(2)(b) alone and an unidentified officer say, “Shut up, before you get arrested” (Allegation F). § 87(2)(b) claimed that he had a black eye, scrapes on his knees, a swollen penis, loosened teeth, and back and stomach pain as a result of the force.

§ 87(2)(g)

### Summary of Complaint

According to the medical records generated for § 87(2)(b) at § 87(2)(b) on § 87(2)(b) at § 87(2)(b), § 87(2)(b) complained of pain to the left side of his face (encl. 6A). He stated that after an automobile collision he was assaulted by the police and was hit on the face and abdomen.

During the intake of this complaint via phone to the CCRB on April 9, 2007, § 87(2)(b) did not allege that an officer punched him in the face (encl. 4A-4C). He also stated that the officer who threatened to arrest an unknown individual stated, “Get the hell out of here before we lock your ass up.” § 87(2)(g)

The IAB log states that that § 87(2)(b) claimed that he was assaulted by unidentified plainclothes and uniformed officers while in handcuffs (encl. 5A-5B). He stated that he sustained a left black eye and was kicked in his “private area” by unidentified officers. The allegation that an officer punched him is not explicitly noted in the IAB log and there is no mention of the threat of arrest.

§ 87(2)(b) was interviewed at the CCRB on April 16, 2007 (encl. 6B-6G). § 87(2)(b) is a Hispanic male who was § 87(2)(b) at the time of this incident. He is 5’11” tall, weighs 185 lbs, has brown hair and brown eyes and is partially bald. On February 27, 2007, at 10PM in the vicinity of Rosewood Avenue and White Plains Road, § 87(2)(b) was coming home from work in Queens, at § 87(2)(b) in his vehicle, a four-door grey Honda Civic, and trying to find parking. He had been driving for forty-five minutes. § 87(2)(b) did not stop his car anywhere on the way or talk to anyone on the street. He made a right turn on Williams Bridge Road to make a u-turn. § 87(2)(b) stated that he was not speeding during this incident. § 87(2)(b) was cut off by a black car with tinted windows. § 87(2)(b) did not pay any attention to the car and it cut him off again. Then the

car began tailgating him and § 87(2)(b) got scared. The car hit § 87(2)(b)'s bumper. § 87(2)(b) headed towards the precinct on 229<sup>th</sup> Street but he did not know where the precinct was. The black car continued to tailgate him and did not have its siren on. About seven minutes later § 87(2)(b) saw a police van with its sirens on. He realized that the black car was a police vehicle. § 87(2)(b) turned around to see who was behind him, then turned back around and saw a road block. § 87(2)(b) put on the brakes to his vehicle and drove it into the train post. He was traveling at about 25 mph when he hit the post and stated that his airbag did not come out. § 87(2)(b)'s windows were open; he put the car into park and put his hands on the steering wheel. There were fifteen officers there. One officer, identified through the investigation as PO Michael McHugh, was a white male who was 6'0" tall, had a slim build with blonde hair and a goatee. The second officer, who was not identified, was a white male who was 6'1" tall with darker blonde hair. The third officer fit the description of PO Richard Carrasquillo, who was the same height, heavier set with dark, short brown hair.

PO Michael McHugh and PO Richard Carrasquillo ran to § 87(2)(b) with their guns drawn and pointed. They grabbed him by the back of his head and by his arms and took him out of the car. § 87(2)(b) did not resist. They threw him on the ground, handcuffed him and then officers began stomping and kicking him. He had a black eye from a kick and gravel marks on his head. Officers also kicked him in his "private parts" and his stomach. He could not identify the officers who were using this force against him because he could not see who was doing it. When the officers picked him up, an officer hit him on the left side of his jaw and said, "What are you looking at?" This unidentified officer was either white or Hispanic with black hair, and was 6'0" tall. An officer wearing a white shirt who was 5'10" tall and had dark hair came to the scene. This officer was identified through the investigation as Lt. Steven Ruffino. Lt. Ruffino asked, "What is your name? Why did you run?" § 87(2)(b) stated, "I didn't know you were police." § 87(2)(b) believed that the officers searched his car because he heard them talking about how surprised they were that there was no contraband in the car. § 87(2)(b) heard a witness saying, "You leave that guy alone." And he heard an unknown officer say, "You shut up, before you get arrested."

From the scene of the incident, § 87(2)(b) was brought to § 87(2)(b) in an ambulance. He was treated for his eye and for his back. § 87(2)(b) told them at the hospital that the injuries were not from the accident but from the police. § 87(2)(b) was asked during the interview if he had been drinking or using any drugs on the night of this incident. § 87(2)(b) stated that although he is prescribed medications for pain (Percoset), he was sober at the time of this incident.

A short black female officer was at the hospital with § 87(2)(b) and told him, "You almost killed me." § 87(2)(b) said, "No ma'am I saw you." She was in the police van. He told her that he went to the right so as not to hit them. He said, "You know, I got assaulted by the police." She stated that she had seen them use force but told him that she did not think he would make a complaint. At the 47<sup>th</sup> Precinct he was charged § 87(2)(a) 160.50. § 87(2)(b) was given summonses as well.

#### **Arrest Photo (encl. 6E)**

§ 87(2)(b)'s arrest photo indicates that the left side of § 87(2)(b)'s face and his left eye appear to be bruised and scraped. § 87(2)(b) is wearing a neck brace in the photo.

### **Results of Investigation**

#### **§ 87(2)(b) (civilian witness)**

§ 87(2)(b) provided contact information for § 87(2)(b) a witness whom § 87(2)(b) stated he met when he went back to the location of the incident to scout for witnesses. Eight phone calls were made to § 87(2)(b) throughout the months of June, July and August of 2007. Two letters were sent to his home. § 87(2)(b) called the CCRB on August 22, 2007, indicating that he had received phone messages and letters. He stated that he does not know § 87(2)(b). On February 27, 2007, § 87(2)(b) was coming out of a store at Rosewood Avenue and White Plains Road when he observed officers beating § 87(2)(b) while he was handcuffed. He heard a civilian say "Leave the man alone." The police responded by saying "Shut the fuck up" and threatened that otherwise he would "have a problem." The investigator offered to visit § 87(2)(b) in the field to take his statement. § 87(2)(b) stated that he was worried that if he gave a statement the officers would retaliate against him. Though § 87(2)(b)

§ 87(2)(b) was assured that instances of police retaliation are extremely rare, § 87(2)(b) did not want to give a statement until he consulted with his wife. He stated that he would call back in order to relate his decision. § 87(2)(b) was called again on August 24, 2007 and a phone message was left for him asking him to call the CCRB in order to inform the investigator as to whether he was willing to provide a statement. § 87(2)(b) did not contact the CCRB again.

### **Officer Identification**

The Online Booking and Arraignment Disposition System indicated that PO Michael McHugh was § 87(2)(b)'s arresting officer (encl.10B). His partners according to the roll call were PO Timothy Merritt and PO Richard Carrasquillo (encl. 32A-32L). § 87(2)(b) According to CTS, PO Merritt is a black male, and § 87(2)(b) did not identify any of the subject officers as black males, § 87(2)(g). According to the roll call, Lt. Steven Ruffino was the platoon commander on the date of this incident. PO Paulino Nunez and PO Laura Varisco were assigned to sectors A and C and this incident occurred within sector A. According to the SPRINT and roll call PO James Rollins, PO Alice Powell, PO Michael Kopf, PO Danil Acevedo, PO Joshua Rotenberg, and PO Patrick Jean were assigned to the sectors that responded to this job. An MISD check identified PO Terrence Smithson and PO Robert Rodriguez as officers who ran § 87(2)(b)'s license plate (encl. 35A-35R).

### **Criminal Complaint (encl. 9A-9B)**

§ 87(2)(a) 160.50

He was charged § 87(2)(a) 160.50

### **Arrest Report (encl. 10A-10B)**

§ 87(2)(g)

It also states that physical force was used to "restrain/control/remove" § 87(2)(b)

### **Supporting Deposition (encl. 8A-8B)**

§ 87(2)(a) 160.50

**PO Michael McHugh** was interviewed at the CCRB on August 3, 2007 (encl. 11A-11C). PO McHugh is a white male who is 6'3" tall, weighs 245 lbs., has red hair, blue eyes and had a goatee at the time of the incident. On February 27, 2007, PO McHugh worked from 3:00PM to 2:35AM. He was assigned to the 47<sup>th</sup> Precinct's Anti-Crime team with PO Richard Carrasquillo and PO Timothy Merritt. They were dressed in plainclothes and driving a gold/tan Chevy Impala § 87(2)(b). He wrote in his memo book that at 10:05PM they were following a possible stolen vehicle on East 236<sup>th</sup> Street and White Plains Road (encl.7A-7C). At 10:15PM they made an arrest at White Plains Road and Rosewood. At 11:05PM they arrived at the 47<sup>th</sup> Precinct for arrest processing. At 2:45AM PO McHugh ended his tour.

At approximately 10:00PM PO McHugh was working routine anti-crime patrol within the confines of the 47<sup>th</sup> Precinct. He and his partners were traveling northbound on Bronxwood Avenue and stopped at a steady red light at the intersection of Pitman Avenue (which turns into 236<sup>th</sup> Street), and Bronxwood Avenue and Barnes Avenue. At the steady red light, the light turned green and PO Merritt, who was driving the police vehicle at the time, proceeded into the intersection. However, a vehicle traveling westbound at a high rate of speed on Pitman Avenue went through the light, and PO Merritt had to slam on the brakes of their car because the vehicle almost hit their police car. The driver of that car, later identified

as § 87(2)(b) was traveling at approximately fifty miles per hour through the steady red light. He continued onto 236<sup>th</sup> Street. The speed limit in New York City, according to PO McHugh is thirty miles per hour. He approximated § 87(2)(b)'s speed based on his training as a NYC police officer; it was almost twice the speed of normal traffic at that intersection. The officers had had a steady green light at the intersection for at least two to three seconds so PO McHugh knew that the light was red for § 87(2)(b).

The officers attempted to pull § 87(2)(b) over by using lights on the dash and a red cherry light in the window as well as the siren. § 87(2)(b) did not pull over his vehicle but continued westbound on 236<sup>th</sup> Street then made a left turn onto White Plains Road through a steady red light. The road has a northbound and a southbound lane separated by a service road that is separated by elevated train pillars all the way down. He continued southbound on White Plains Road, going through numerous red lights and crossing the double yellow line on White Plains Road. § 87(2)(b) was reaching speeds in excess of seventy miles per hour. He passed a marked NYPD van and continued southbound. PO McHugh did not know what command the officers in the van were from or who they were. At 216<sup>th</sup> Street and White Plains Road, the road splits to a southbound side and a northbound side. § 87(2)(b)'s vehicle could not make the turn to get into the southbound lane so he continued the wrong way into oncoming traffic at a high rate of speed in the northbound lane. He approached a marked RMP with its turret lights on and caused it to take evasive action. At the intersection with Rosewood Avenue, there was construction going on so that the middle was blocked off underneath the elevated train. § 87(2)(b) could not negotiate the turn, slammed on the brakes and struck an elevated train support pillar.

The traffic was light at Bronxwood Avenue when § 87(2)(b) went through the intersection but White Plains Road has heavy traffic at all times of night. PO McHugh put over a radio call at 233<sup>rd</sup> Street of a possible stolen vehicle, radio code 16v. PO McHugh stated that he thought the car might be stolen because he kept running from them. When cars refuse to stop, most of the time this is an indication that they are stolen. PO McHugh did not know how many cars were in pursuit of § 87(2)(b)'s vehicle.

After § 87(2)(b) crashed into the elevated train post, PO McHugh and PO Carrasquillo approached the vehicle with their guns drawn. PO Carrasquillo removed § 87(2)(b) from the vehicle. PO McHugh holstered his gun, came around to handcuff § 87(2)(b) but § 87(2)(b) went towards PO McHugh. The officers brought him to the ground and got him cuffed. PO McHugh stated that as § 87(2)(b) came toward him he kicked § 87(2)(b) in the mid-section and then took him to the ground. PO McHugh kicked § 87(2)(b) because he was coming towards him and he wanted to preserve his safety. PO McHugh did not kick § 87(2)(b) more than once. § 87(2)(b) bent over in response, thereby making it easier to bring him to the ground. Then PO McHugh tried to grab § 87(2)(b)'s arms. They had a hard time getting § 87(2)(b) cuffed because he was flailing his arms. Other officers came to the scene and got on him making it more difficult to get him cuffed. PO McHugh pulled some of the other officers off of § 87(2)(b). PO Carrasquillo got him into handcuffs. PO Carrasquillo did not strike § 87(2)(b) to PO McHugh's recollection. PO McHugh did not punch § 87(2)(b). PO McHugh did not use any force on § 87(2)(b)'s head or neck and did not see any other officer use this kind of force. They got him up, noticed that he had injuries from the accident and called an ambulance. § 87(2)(b) had bruising and swelling to his face.

PO McHugh stated that he did not know which other officers came to the scene. He stated that there were a lot of officers from many commands. Officers from the 49<sup>th</sup> Precinct were there because they border the 47<sup>th</sup> Precinct and are on the same frequency. PO McHugh could not recall if any civilians were around because he was focused on making the arrest. He did not hear any officer make threats of arrest. § 87(2)(b)'s airbag did not deploy. There was no roadblock set up but the road was blocked by the construction. PO Carrasquillo went in the ambulance with § 87(2)(b). § 87(2)(b)'s demeanor after hitting the pillar was a little hazy or "out of it." PO McHugh asked him why he fled because the car belonged to him, his license was not suspended, and there was no smell of alcohol coming from him. § 87(2)(b) stated that he did not know. PO McHugh did not use any discourteous language and did not kick § 87(2)(b) in the groin. No force was used after he was put into handcuffs. PO McHugh did not see an officer hit § 87(2)(b) on the left side of his jaw. The ambulance went to the wrong location so it took a while to get there but it eventually took § 87(2)(b).

**PO Richard Carrasquillo** was interviewed at the CCRB on October 9, 2007 (encl. 13A-13B). PO Carrasquillo is a Hispanic male who is 5'9" tall, weighs 215 lbs. and has black hair and brown eyes. On February 27, 2007, PO Carrasquillo worked from 6:00PM to 2:05AM. PO Carrasquillo worked with PO Merritt and PO McHugh. He was dressed in plainclothes and assigned to an unmarked vehicle. PO Carrasquillo was in the back seat of the car. PO Merritt was driving and PO McHugh was in the front passenger seat.

On February 27, 2007, PO Carrasquillo, PO Merritt and PO McHugh were at the intersection of Barnes Avenue and 234<sup>th</sup> Street. They were patrolling and as they attempted to proceed through the intersection, they almost got "t-boned" by a car that was running a red light at a high rate of speed from east to west. He could tell that the car was traveling at a high rate of speed because the speed limit there is between 25 and 30 miles per hour and he must have been traveling at 50 miles per hour. The car went right past them. They turned around their police car and turned their lights on and gave chase to the car. During the chase the officers used lights and sirens to indicate to the driver of the car that they wanted the car to stop. At 234<sup>th</sup> Street and White Plains Road the car went through a red light and the officers proceeded in their chase. At that point PO Carrasquillo believed that either the car was stolen or something happened that the driver was running away from. As the vehicle proceeded down White Plains Road, it crossed through 233<sup>rd</sup> Street and kept cutting through lights. At that time the officers called for backup for a possible stolen vehicle. § 87(2)(b)'s car began traveling southbound in the northbound lane through traffic, almost hitting pedestrians. They chased him to Rosewood Avenue and White Plains Road, approximately twenty four blocks. Other police vehicles joined in pursuit, including Task Force, Borough Crime and officers from the 49<sup>th</sup> Precinct. As they continued their chase § 87(2)(b) attempted to make a turn at Rosewood Avenue and White Plains Road, in order to avoid construction. He missed the turn and he ended up hitting the metal stanchion of the elevated train station. He was traveling at about sixty miles per hour at the time.

PO Carrasquillo approached the vehicle and went to the driver's side. He found § 87(2)(b) in the car, took him out of the vehicle and placed him on the floor and put handcuffs on him. § 87(2)(b) resisted as he was trying to take him out of the car by holding onto the steering wheel so PO Carrasquillo grabbed his wrists and then used an arm bar to get him down to the ground. The arm bar is done by first taking the wrists and then holding down the elbow from behind. PO McHugh was next to PO Carrasquillo. PO Carrasquillo told § 87(2)(b) "Come on let's go. Get out of the car." When PO Carrasquillo asked § 87(2)(b) why he ran, § 87(2)(b) did not respond and had a blank look on his face. Once PO Carrasquillo got § 87(2)(b) down and handcuffed, they called an ambulance because § 87(2)(b) had hit his head either on the steering wheel or on the glass. He had a bump on his head but no other injuries. PO Carrasquillo stated that other than the arm bar, he did not use any other force. He also stated that this was the only force necessary and no other officer assisted in getting § 87(2)(b) to the ground and in handcuffs. No officers used force with § 87(2)(b). No officer kicked § 87(2)(b) or struck him with a fist. § 87(2)(b) did not charge at any officers. An unknown sergeant responded. PO Carrasquillo did not hit § 87(2)(b) in his jaw.

§ 87(2)(b) went to the hospital. PO Carrasquillo waited at the scene for the tow-truck to come. Marked cars from the 47<sup>th</sup> Precinct and the 49<sup>th</sup> Precinct had come to the scene.

**PO Michael Kopf** and **PO Danil Acevedo** were interviewed at the CCRB on August 6, 2007 (encl. 15A-16B). PO Kopf is a white male who is 6'0" tall, weighs 175 lbs. and has brown hair and brown eyes. PO Acevedo is a Hispanic female who is 5'2" tall, weighs 130 lbs. and has blonde hair and green eyes. On February 27, 2007, they worked from 3:00PM to 11:35PM in Sectors E and H. They were in uniform and riding in marked RMP 1641. PO Kopf did not have any memo book entries regarding an incident at the location of this incident. § 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b) They did not recognize a photo of § 87(2)(b)

**PO Laura Varisco** was interviewed at the CCRB on August 24, 2007 (encl. 18A-18B). PO Varisco is a white female who is 5'3" tall, weighs 120 lbs. and has brown hair and brown eyes. On February 27, 2007 PO Varisco worked from 3:00PM to 11:00PM and was assigned to sectors A and C. She was dressed in

uniform and worked with PO Paulino Nunez. § 87(2)(g)

PO Varisco did not have any entries in her memo book regarding an incident at Rosewood Avenue and White Plains Rd. § 87(2)(b)

PO Varisco stated that she did not go to a location where an individual had run his car into an elevated train post. She did not recognize the photo of § 87(2)(b)

**PO Alice Powell** was interviewed at the CCRB on August 30, 2007 (encl. 12A-12B). PO Powell is a black female who is 5'2" tall, weighs 160 lbs, and has black hair and brown eyes. On February 27, 2007, PO Powell worked from 4:00PM to 12:00AM on February 28, 2007. She was working with PO Rollins and both were in uniform. PO Powell stated that she did not make any memo book entries.

At approximately 10:00PM on February 27, a call came over the radio alerting her and her partner to a vehicle pursuit not far from their location. PO Rollins, who was driving, headed in the direction of the pursuit. When they reached the scene they were on White Plains Road. The car being pursued was headed towards them at high speed, on the wrong side of the road. PO Powell did not recall which direction she was traveling. The car, driven by § 87(2)(b) was being followed by an unknown number of unmarked cars. As § 87(2)(b)'s car approached them PO Rollins attempted to block the vehicle with the squad car, hoping that it would stop. The driver of the approaching vehicle did not appear to slow down, so PO Rollins immediately turned the squad car out of the way in order to avoid a collision. POs Rollins and Powell then proceeded in the direction of the ongoing pursuit. By the time they turned around the car to follow the pursuit, the car they were pursuing had struck one of the posts of an elevated train. About 5 minutes had elapsed between their receipt of the initial call and their arrival at the scene of the collision.

When POs Rollins and Powell stopped their car and exited, § 87(2)(b) had already been removed from the vehicle. Approximately four or five plainclothes officers had § 87(2)(b) on the ground and were trying to handcuff him. § 87(2)(b) resisted by trying to move his hands under his body, and by squirming in order to prevent the officers from handcuffing him. PO Powell did not see the officers strike or kick § 87(2)(b). PO Powell did not see § 87(2)(b) use force against the officers, outside of his squirming and trying to move his hands under his body. The officers eventually got § 87(2)(b) into handcuffs. PO Powell did not notice where § 87(2)(b) went from there. She did not speak to any witnesses or officers at the scene, and did not recognize any officers there. PO Powell estimates that she was at the scene of the accident for five minutes.

The next day, PO Powell was assigned to guard § 87(2)(b) in the hospital. She arrived between 4PM and 5PM and stayed the duration of her tour. While at the hospital, PO Powell noted that § 87(2)(b)'s eyes appeared swollen. She did not know how he had received the injury. § 87(2)(b) did not complain about any misconduct and did not suggest that he was going to make a complaint.

**PO James Rollins** was interviewed at the CCRB on January 18, 2008 (encl. 22A-22B). PO Rollins is a black male who is 5'8" tall, weighs 211 lbs, and is bald with brown eyes. On February 27, 2007, PO Rollins worked in a marked RMP with PO Powell. He did not have any memo book entries in regard to this incident. § 87(2)(g) he stated that when he and PO Powell arrived at the scene, § 87(2)(b) was already handcuffed. PO Rollins did not see any officers stomp or kick § 87(2)(b). He did not see any officer hit § 87(2)(b) in the face. PO Rollins did not hear any officers threaten to arrest anyone at the scene. PO Rollins did not see § 87(2)(b) after he resumed patrol.

**PO Josh Rotenberg** was interviewed at the CCRB on December 14, 2007 (encl. 20A-20B). PO Rotenberg is a white male who is 5'10" tall, weighs 200 lbs, and has blonde hair and gray eyes. On February 27, 2007, PO Rotenberg was assigned to Sectors F and K within the confines of the 47<sup>th</sup> Precinct. PO Rotenberg was the operator of his vehicle that day. He did not recall an incident involving a vehicle that hit the post below an elevated train at Rosewood Avenue and White Plains Road. PO Rotenberg was shown the arrest photo of § 87(2)(b) but he did not recognize him. He was also presented with the SPRINT,

which indicated that sector F responded to the radio run. PO Rotenberg stated that he could not remember responding to the call and that they may not have made it to the scene.

**PO Patrick Jean** § 87(2)(g) His memo book did not reflect that they went to the location of the vehicle collision and PO Rotenberg did not recall the incident.

**Lt. Steven Ruffino** was interviewed at the CCRB on January 29, 2008 (encl. 24A-24B). Lt. Ruffino is a white male who is 5'10" tall, weighs 195 lbs, and has black hair and brown eyes. On February 27, 2007 he worked a tour of approximately 2:45PM to 11:50PM and was the platoon commander. He worked with PO James Foster. Lt. Ruffino was in uniform and was in RMP § 87(2)(b). At 10:09PM he wrote in his memo book that he was at White Plains Road and Rosewood Avenue to verify an arrest made by the 47<sup>th</sup> Precinct Anti-Crime unit. He did not make any other entries in regard to this incident.

Lt. Ruffino did not recall anything about the incident or the perpetrator who was arrested. He was shown the arrest photo of § 87(2)(b) but did not recognize him. Verifying an arrest involves going to the scene of an incident and speaking to the arresting officer. Lt. Ruffino was working on another job, a five minute ride away from the scene of this incident, during the time of the incident and believes that this may be why he does not remember verifying the arrest. Lt. Ruffino was told that the incident involved a car chase that subsequently led to § 87(2)(b) hitting a train post but he still could not remember the incident.

§ 87(2)(g)

**PO Terrence Smithson** was interviewed at the CCRB on March 21, 2008 (encl. 25A-25B). PO Smithson did not write down his assignment for February 27, 2007 in his memo book. His command works out of the 47<sup>th</sup> Precinct. PO Smithson was dressed in uniform and was most likely assigned to an unmarked vehicle. PO Smithson did not remember the description of the vehicle he was in. He had no memo book entries regarding an incident at Rosewood Avenue and White Plains Road. The only memo book entries that he had were in regard to the beginning and the end of his tour. PO Smithson could not recall an incident at Rosewood Avenue and White Plains Road or seeing a crashed vehicle at that location. He did not recognize § 87(2)(b) from his arrest photo. PO Smithson was asked if he ran an MISD search for § 87(2)(b)'s license plate. He stated that he could not recall doing this.

**PO Robert Rodriguez** was interviewed at the CCRB on March 21, 2008 (encl. 27A-27B). On February 27, 2007, PO Rodriguez worked from 12:00PM to 5:10AM on February 28, 2007. At 5:00PM he was at a post within the 52<sup>nd</sup> Precinct. He was in uniform and was assigned to marked RMP 2069. PO Rodriguez did not have any memo book entries regarding this incident. He did not recall an incident where a driver hit the post of an elevated train and did not recognize § 87(2)(b) from his arrest photo. PO Rodriguez did not recall being in the vicinity of this incident and did not recall running a license plate through MISD though he did state that it was possible that he ran the plate for another officer.

#### **Ambulance Call Report (encl. 29A-29D)**

The Ambulance Call Report stated that on § 87(2)(b) at E. 224th Street and White Plains Road in the Bronx, § 87(2)(b) was involved in a motor vehicle accident and suffered pain to his head and eye. He had swelling and soft tissue damage to his left eye. The chief complaint listed on the Call Report was, "He ran into pillar."

#### **Medical Record (encl. 30A-30x)**

According to the medical records § 87(2)(b) was a restrained driver, wearing a seatbelt, at the time that he hit the train post. § 87(2)(b) had swelling and bruising to his left eye and was unable to open his eye. He had no bruising or bleeding to his scrotum, perineum or pelvis. The CT scan indicated that he had no intracranial injury and no facial fracture. § 87(2)(b) has a history of seizures for which he is prescribed Dilantin and Neurontin and has a history of back pain. § 87(2)(b) complained mostly of



back and face pain. According to the medical record, § 87(2)(b) screened positive for cocaine, methadone and opiates.

#### *SPRINT and Communication CD* (encl. 31A-31F)

The SPRINT indicates that at 10:07PM a call came over in reference to a 10-60I at East 224<sup>th</sup> Street and White Plains Rd. An officer advised central that they were in chase/pursuit of a vehicle that was in violation of the law. At 10:08PM, § 87(2)(b)'s plate number § 87(2)(b) was put over the radio along with a description of the grey Honda Civic. A lieutenant arrived at the scene at 10:09PM and the SPRINT indicates that the vehicle was at White Plains Rd. and Rosewood Avenue. The SPRINT indicates that the anti-crime officers believed that the car was possibly stolen. § 87(2)(b) was in custody at 10:11PM. The arrest was verified at 10:15PM and EMS was called at § 87(2)(b).

According to the communications CD at 00:57 seconds from the beginning of the CD an officer (later recognized as being from the 47 anti-crime unit), puts over a call for a pursuit of a vehicle at East 224<sup>th</sup> street and White Plains Road. Police sirens can be heard from the beginning of the call. The car is described as a Grey Honda Civic with license plate § 87(2)(b). Other responding units included a lieutenant and sector DEF. The car was stopped and § 87(2)(b) was in custody at 2:39 minutes. This means that in the course of 1:42 minutes the car (according to Hagstrom's map of the area) had traveled approximately one mile and § 87(2)(b) had been apprehended.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### § 87(2)(b) DMV History (encl. 37A-37E)

§ 87(2)(b)

#### Civilian CCRB History

§ 87(2)(b) has no prior CCRB complaints.

#### Officer CCRB History

PO Michael McHugh has one prior substantiated CCRB allegation (abuse, other) in relation to case number 200301006. In that case he failed to obtain care for a dependent child in an arrest situation. The CCRB recommended instructions and the NYPD carried out this recommendation. PO Richard Carrasquillo has no history of substantiated CCRB complaints.

### **Conclusions and Recommendations**

#### Undisputed Facts

On February 27, 2007, § 87(2)(b) drove into a train post at Rosewood Avenue and Whiteplains Rd. after being chased by police officers in an unmarked vehicle. § 87(2)(b) was approached by PO Michael McHugh and PO Carrasquillo. § 87(2)(b) was transported to § 87(2)(b) by EMS and had injuries to the left side of his face.

#### Disputed Facts

§ 87(2)(g)

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED].

#### *Assessment of Evidence*

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED] PO McHugh, PO Carrasquillo, PO Powell, and PO Rollins all claimed that § 87(2)(b) almost hit their vehicles, drove at an excessive speed and drove onto oncoming traffic.

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

There were no independent witnesses to this incident. § 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(g) [REDACTED] PO McHugh and PO Carrasquillo § 87(2)(g) [REDACTED]  
[REDACTED] Both of these officers denied that any officer punched § 87(2)(b) in the face and that any force was used while § 87(2)(b) was in handcuffs. However, PO McHugh, PO Carrasquillo and PO Powell claimed that § 87(2)(b) was resisting. PO McHugh stated that he had to pull officers off of § 87(2)(b) but claimed that those officers were not punching or kicking § 87(2)(b). PO McHugh did not state what the officers were doing “on top of” § 87(2)(b). § 87(2)(b) claimed that up to fifteen officers were at the scene and he did not see the officers who were allegedly using this force. § 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED] PO Rollins stated that he did not witness § 87(2)(b) being handcuffed, though PO Powell stated that she did. § 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

#### *Allegations Not Pleased*

§ 87(2)(g)

When § 87(2)(b) made this complaint to the CCRB he stated that the officer who made the threat of arrest stated, “Get the hell out of here before we lock your ass up.” However he did not reiterate the alleged use of discourteous language during his interview at the CCRB. § 87(2)(g)

#### **Allegation A: PO Richard Carrasquillo pointed his gun at § 87(2)(b)**

#### **Allegation B: PO Michael McHugh pointed his gun at § 87(2)(b)**

PO McHugh stated that both he and PO Carrasquillo had their guns drawn but he did not say that they were pointed at § 87(2)(b). PO Carrasquillo did not say that he pointed his gun at § 87(2)(b) and stated that the only force he used was in grabbing § 87(2)(b) in order to get him out of his vehicle. § 87(2)(g)

According to PD. V. Gliner there are no regulations or guidelines concerning the drawing of a weapon and an officer can point his firearm at another person so long as he has a reasonable fear for his safety (encl. 1A-1E)). § 87(2)(g)

#### **Allegation C: PO Michael McHugh used physical force against § 87(2)(b)**

#### **Allegation D: PO Richard Carrasquillo used physical force against § 87(2)(b)**

§ 87(2)(b) could not describe the officers responsible for using force against him while he was in handcuffs. § 87(2)(g)

PO McHugh and PO Carrasquillo were the officers who admittedly apprehended § 87(2)(b) and put him into handcuffs. § 87(2)(g) They admitted to the use of minimal force in order to gain § 87(2)(b)'s compliance but denied that they or any other officer used excessive physical force. According to Criminal Procedure Law 35.30 an officer can use the amount of force necessary to effect an arrest (encl. 1F). § 87(2)(g)

#### **Allegation E: Officers used physical force against § 87(2)(b)**

Other than PO McHugh and PO Carrasquillo, none of the officers interviewed in regard to this complaint admitted to using any force against § 87(2)(b). PO McHugh and PO Carrasquillo did not identify any other officer who may have used force and § 87(2)(b) did not provide detailed descriptions of the officers who used force against him while he was in handcuffs. § 87(2)(g)

#### **Allegation F: An officer threatened to arrest an unidentified individual.**

§ 87(2)(b) did not describe the officer who allegedly threatened to arrest an unidentified individual at the scene of his arrest. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: